

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Probate Notes

2025PRTR050115: IN RE THE JAMES SHORT JR INTER VIVOS TRUST
AGREEMENT DATED OCTOBER 20 2016
07/08/2026 in Department J6
Motion to Transfer

The Court intends to deny the motion to transfer. (Code Civ. Proc., § 397, subd. (c).) The moving parties fail to carry their burden of demonstrating that the convenience of witnesses and the ends of justice would be promoted by the proposed change. (*Union Trust Life Ins. Co. v. Superior Court* (1968) 259 Cal.App.2d 23, 28.)

Petitioners seek to change venue (after the LASC already once transferred their case from Los Angeles County to this county) back to the LASC on the ground of the convenience of witnesses and the ends of justice. (CCP § 397(c).) Cases make clear that in applying this statutory provision, it is only the convenience of the nonparty witnesses that is important. Absent extraordinary circumstances, the parties' conveniences are not considered—even if they are to testify. (*Peiser v. Mettler* (1958) 50 Cal.2d 594, 612; *Wrin v. Ohlandt* (1931) 213 Cal. 158; *Dillman v. Superior Court* (1962) 205 Cal.App.2d 769, 773-774.) Convenience of counsel is also not a permissible consideration on a change of venue motion. (*Lieppman v. Lieber* (1986) 180 Cal.App.3d 914, 920.) Nor is the convenience of expert witnesses who may be called to testify, but who have no personal knowledge of any facts in the case. (See *Wrin, supra*, at p. 160.) Nor is consideration given to the convenience of witnesses who are employees of the litigants. (*Stute v. Burinda* (1981) 123 Cal.App.3d Supp. 11, 17.) The burden is on the moving party on a motion for change of venue to prove that both the convenience of witnesses and the ends of justice will be promoted thereby. (*Union Trust Life Ins. Co. v. Superior Court* (1968) 259 Cal.App.2d 23, 28.)

Additionally, affidavits or declarations in support of the motion must set forth the names of the witnesses, the nature of the testimony expected from each, and the reasons why the attendance of each would be inconvenient. (*Peiser, supra*, 50 Cal.2d at p. 607; *Corfee v. Southern California Edison Co.* (1962) 202 Cal.App.2d 473, 477.) The nature of the testimony expected of each is necessary so that the court may determine the materiality of the evidence or the necessity of the testimony from such witnesses. (*Juneau v. Juneau* (1941) 45 Cal.App.2d 14, 16; *Corfee, supra*, at p. 477.) The convenience of witnesses whose testimony will be merely cumulative is entitled to little consideration. (See *International Investment Co. v. Chagnon* (1959) 175 Cal.App.2d 439, 446; *Corfee, supra*, at p. 477.)

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The current motion fails to identify any nonparty witnesses who are expected to testify at trial or why the attendance of each would be inconvenient. The nature of their testimony is not stated. No affidavits with the foregoing information are provided. In short, the motion fails to carry Petitioners' evidentiary burden of demonstrating that venue should be changed back to LASC based on the "convenience of witnesses" and the "ends of justice."